

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 1747 of 1994

Md. Tota Mia Khondakar and others

...Appellants

-Versus-

The State

...Respondent

Mr. Nusrat Alam Chisty Advocate with

Ms. Faria Binta Alam, Advocate

...For the appellants

Mr. S.M. Golam Mostofa Tara, D.A.G with

Mr. A. Monnan (Manna), A.A.G with

Mr. Md. Shaifour Rahman Siddique Saif, A.A.G

...For the State

Heard on 12.07.2023 and 19.07.2023

Judgment delivered on 27.07.2023

This criminal appeal under Section 410 of the Code of Criminal Procedure, 1898 is directed against the judgment and order dated 14.09.1994 passed by the Additional Sessions Judge, First Court, Dhaka in Sessions Case No. 307 of 1991 convicting the appellant Md. Tota Mia Khondakar under Section 19, serial No. 3(Ka) of the table of মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him to suffer rigorous imprisonment for 3 years and to pay a fine of Tk. 5,000, in default, to suffer rigorous imprisonment for 6 months more and convicting the appellant Md. Tota Mia Khondakar under Section 19, serial No. 7(Ka) of the মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him to suffer rigorous imprisonment for one year and to pay a fine of Tk. 2,000, in default, to suffer rigorous imprisonment for 3 months more which will run concurrently and convicting the appellant Badsha Mia Khondakar under Section 19, serial No. 6 (kha) of the table of মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him to suffer rigorous imprisonment for 3 years and to pay a fine of Tk. 5,000, in default, to suffer rigorous imprisonment for 6 months more and convicting the appellant Bashu Mia Khandakar under Section 19, serial No. 6(ka) of the table of মাদকদ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him

to suffer rigorous imprisonment for 6 months and to pay a fine of Tk. 2,000, in default, to suffer rigorous imprisonment for one month more.

The prosecution case, in brief, is that on 24.04.1991 at about 9 am Inspector Sk. Abdul Hai of the Narcotics Control Department along with the members of the raiding party went to the house of appellants situated at village Bardeshi under Savar Police Station, Dhaka and searching their house, the members of the raiding party seized alcohol and other drugs and bullets of 303 rifles and prepared the seizure list in presence of the witnesses and took their signature on the seizure list and arrested accused Tota Mia from his house and at the time of raiding the house appellants Badsha Mia and Bashu Mia fled away. The informant Sk. Abdur Razzak filed a complaint petition with Magistrate, Savar Upazilla along with a preliminary report and seizure list.

P.W. 8 Inspector Sk. Abdur Razzak of the Directorate of the Narcotics Control Department took up the investigation of the case and during the investigation, he visited the place of occurrence, recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898 and having found the prima-facie truth of the allegation against the accused persons submitted charge sheet against them.

During the trial, charge was framed under Section 19, serial No. 3 and 7 of Table-Ka of মাদকদ্রব্য নিয়ন্ত্রণ আইন against accused persons. The charge was also framed under Section 19, serial No. 6 of মাদকদ্রব্য নিয়ন্ত্রণ আইন and at the time of the framing charge, the accused persons were absconding for which the charge framed against them could not be read over and explained to them. The prosecution examined 11 witnesses to prove the charge against the accused persons and the accused persons cross-examined the witnesses. After examination of the prosecution witnesses, the accused persons were examined under Section 342 of the Code of Criminal Procedure, 1898 and they pleaded not guilty to the charge and declined to adduce any witness. After concluding the trial, the trial Court by impugned judgment and order convicted the accused

persons and sentenced them as stated above against which they preferred the instant appeal.

P.W. 1 Sk. Abdul Hai is the Inspector of the Narcotics Control Department. He stated that on 26.04.1991 at about 9.00 am based on secret information, he along with Khabiruddin, Akhteruzzaman, Wazed Ali, Abul Hossain and other total 24 officers under the leadership of Shahidullah went to the Bardeshi village of Savar Thana and having searched the house of the accused-persons recovered 2 kg cannabis and 400 grams of opium from the hut of accused Tota Mia and recovered 16 Cans of Tiger Beer, 4 Cans of Heineken Beer from the room of Basu Mia and 16 gallons of the country made Liquor, 160 ounces of the country made Liquor, 32 ounces of rectified spirit, 145 ounces of the country made Liquor from the room of Badsha Mia and in presence of witnesses prepared the seizure list and took signature of the witnesses on the seizure list. He proved the seizure list as Exhibit 1. He proved the suitcase as material exhibit I wherefrom the opium and cannabis were recovered. He proved the container wherein the opium was kept as material exhibit II, Heineken and Tiger beers as material exhibit III series, country made liquor as material exhibit IV. He could not identify the accused persons as they were absconding. Subsequently, on recalled by the defence during cross-examination, he stated that Abdul Majid had written the seizure list and the members of the raiding party entered the place of occurrence along with the witnesses and there was one hut of Tota Mia and two rooms of Badsha Mia and there were also 100/150 houses to the western side of the place of occurrence. He denied the suggestion that at the instance of the local enmity, he falsely implicated the accused persons in the case.

P.W. 2 Akhtaruzzaman is the Inspector of the Narcotics Control Department. He stated that on 26.04.1991 under the leadership of Shahidullah Khan about 24 members of the raiding party went to village Bardeshi of Savar Thana and reached there at about 9.00 am and having searched the house of the accused persons recovered 2 kg cannabis and 40 grams of Opium from the semipucca hut of accused Tota Mia which was kept within sky colour trunk. sixteen gallons of country made Liquor kept

in 2 plastic jars was recovered, one gallon country made Liquor kept in a plastic Jar, 160 ounces of country made Liquor kept in 11 bottles, and 140 ounces of country made Liquor kept in an aluminium container in 28 polythene bags. Two pounds of rectified spirit kept in a Jar were recovered from the room of accused Badsha Mia. 16 Cans of Foreign Beer (alcohol), 12 Tiger and 4 Heineken Beers were recovered from the hut of accused Bashu Mia in the presence of witnesses. The said alamats were recovered from the place of occurrence and the seizure list was prepared. Accused Tota Mia was present at the time of recovery and he also signed the seizure list. He identified the accused Tota Mia in dock. He proved the seizure list and his signature as exhibit 1/2. He also identified the signature of accused Tota Mia in the seizure list as exhibit 1/3. He also stated that Tota Mia signed the seizure list in his presence. He identified some alamats in Court. During cross-examination, he stated that he called the witnesses at the place of occurrence. He denied the suggestion that the alamats were not recovered from the house of the accused-persons.

P.W. 3 Abul Hossain is the Inspector of the Narcotics Control Department. He stated that on 26.04.1991 at about 9.00 am they went to the place of occurrence and searched the house of the accused-persons in the presence of witnesses and 2 kg cannabis and 400 grams opium were recovered from the living hut of accused Tota Mia which were kept in a sky colour trunks and 16 gallons country made Liquor kept in two Plastic Jars, 160-ounce country made Liquor kept in 11 bottles, 2 pounds of rectified spirit kept in a plastic Jar, 145 ounces of country made Liquor kept in 28 polythene bags, one-gallon country made liquor kept in small Plastic Jar were recovered from the hut of accused Badsha Mia. He also stated that 12 cans of Tiger Beer and 4 Cans of Heineken Beer, 16 Cans of Foreign Beer kept under the Chowki of the room of the accused Bashu Mia were recovered. After the recovery of the alamats, the seizure list was prepared and the witnesses signed the seizure list. Accused Tota Mia also signed the seizure list in the presence of witnesses. A sample of the recovered alamats was sent for chemical examination and the accused Tota Mia was arrested from the place of occurrence. He identified the

material exhibits in Court. During cross-examination, he stated that the members of the raiding party searched 3 rooms of the accused persons. The room of the accused Tota Mia is south-facing and the room of the accused Badsha Mia is situated on the western side of the room of the accused Tota Mia. He denied the suggestion that the alamats were not recovered from the place of occurrence. He also denied the suggestion that he did not go to the village Bardeshi.

P.W. 4 Abdul Hannan was tendered by the prosecution. During cross-examination, he stated that the rooms of the accused Badsha Mia and Tota Mia situated side by side.

P.W. 5 Majibur Rahman, P.W. 6 Md. Osman Ali and P.W. 7 Md. Ersanul Hai were also tendered by the prosecution and the defence declined to cross-examine them.

P.W. 8 Sk. Abdur Razzak is the complainant and the Investigating Officer of the case. He stated that on 26.04.1991 P.W. 1 Inspector Sk. Abdul Hai along with other Inspectors of the Narcotics Control Department raided the house of the accused persons and in the presence of accused Tota Mia and local witnesses, they recovered alamats by preparing a seizure list from possession and control of the accused persons. 16 Cans of Beer and a huge amount of country made Liquor kept in different types of containers and rectified spirit were recovered from the room of accused Badsha Mia and Basu Mia. 2 kg cannabis, 400 grams opium and 10(ten) 303 rifle bullets were recovered from the possession and house of the accused Tota Mia who was arrested from the place of occurrence. He proved the forwarding report as exhibit 2 and the signature of Abdul Hai as exhibit 2/1. He received the same putting his signature on exhibit 2. He proved the petition of the complainant as exhibit 3. He also identified the materials exhibits. He identified accused Tota Mia present in Court. He proved the alamats as material exhibits I-IX. He identified the accused persons in Court. The samples of alamats were sent for chemical examination. He received the report of the Chemical Examiner. He recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898, visited the place of occurrence, and prepared a

sketch map and index. He proved the sketch map as exhibit 7 and after completing the investigation submitted charge sheet against the accused persons. During cross-examination, he stated that after crossing the ditch situated to the western side of the house of Tota Mia there were 100/150 houses and most of the houses belonged to accused Tota Mia and the persons who were living there were tenants of accused Tota Mia. He did not examine them.

P.W. 9 Md. Abdul Baki Mia is the Assistant Chemical Examiner, C.I.D Dhaka. He stated that on 09.05.1991 he received separate samples from the Inspector of the Narcotics Control Department, Dhaka Circle. Sample Ka and Kha were kept in two packets. After opening the sample 10 grams of dried herbs were found on sample Ka and 2.2 grams of blackish substance were found in the sample Kha. After chemical examination, he found the cannabis herbs in sample Ka and found Opium in sample Kha. He affirmed that the seal was intact. He proved the report as exhibit 4 and his signature as exhibit 4/1. On 05.05.1991 he also received one sample in a glass bottle from the Inspector of Narcotics Control Department. He examined the sample and found rectified spirit in the sample. The alcohol strength of said liquid substance was 15%. The seal was found intact. He proved the report as exhibit 5. On 09.05.1991, he also found one sealed bottle from the Narcotics Department. On chemical examination, he found the alcohol strength of the liquid substance to be 42.5%. He found the seal intact. He proved the report as exhibit 6. During cross-examination, he stated that the alampats were chemically analysed by him.

P.W. 10 Lal Mia is a witness on the seizure list. He stated that on 20.04.1991 at 9.00 am the police called them to go to the house of accused Tota Mia of Bardeshi village and saw a tin box and gallons of water etc at the place of occurrence and at that time, police instructed him to put his signature and he signed the seizure list. He identified the material exhibit I. He mentioned that he could not say anything as regards the recovery of the alampat found in the box. He proved the seizure list as exhibit 1 and his

signature as exhibit 1/4. Thereafter he was declared hostile. During cross-examination, he admitted that the accused persons are known to him.

P.W. 11 Jamal Uddin is also a witness on the seizure list. He stated that on 26.04.1991 at 9.00 am the occurrence took place at Bardeshi village near Amin Bazar at the house of Tota Mia. The members of the raiding party who were in civil dress called him to come to the house of Tota Mia and the police personnel requested him to sign the seizure list and accordingly, he signed the seizure list. He saw a tin box and 2 plastic gallons at the place of occurrence. He identified the tin box as material exhibit I. He mentioned that he put his signature on white paper. He proved his signature in the seizure list as exhibit 1/5. Thereafter, he was declared hostile. During cross-examination, he admitted that he signed the type seizure list.

Learned Advocate Mr. Nusrat Alam Chisty appearing along with learned Advocate Ms. Faria Binta Alam on behalf of the appellants submits that accused Badsha Mia is the father of accused Bashu Mia and they were not present at the time of recovery of the alleged alamats from the place of occurrence and they are also not the owner of the house wherefrom the alleged alamats were recovered. He further submits that there is a contradiction in the evidence of P.Ws. 1, 2 and 3 who are the direct witnesses of the occurrence and the trial Court arrived at a conclusion that nothing is mentioned in the seizure list which alamats were recovered from the house of the accused Badsha and Bashu Mia. P.Ws. 10 and 11 are the witnesses of the seizure list and they were declared hostile and P.Ws. 4, 5, 6 and 7 were tendered by the prosecution although they are material witnesses. The prosecution failed to prove the charge against the accused Badsha Mia and Bashu Mia beyond all reasonable doubt.

Learned Deputy Attorney General Mr. S.M. Golam Mostofa Tara appearing on behalf of the State submits that P.Ws. 1, 2. and 3 are the direct witnesses of the occurrence and they in a voice stated that the alamats as mentioned in the seizure list were recovered from the hut of the accused-persons and the prosecution witnesses proved the charge against

the accused-persons beyond all reasonable doubt. Therefore, he prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocates Mr. Nusrat Alam Chisty and the learned Deputy Attorney General, perused the evidence, impugned judgment and order passed by the trial Court and the records.

At the very outset, it is noted that the State filed a supplementary affidavit on 18.07.2023 having annexed a report issue from the Officer-in-Charge, Savar Model Thana, Dhaka stating that accused Md. Tota Mia Khondakar died about 12/15 years ago.

On perusal of the records, it appears that at the time of recovery of the alleged alamats accused Badsha Mia and Bashu Mia were not presented at the place of occurrence. The accused Badsha Mia is the brother of co-accused Md. Tota Miah Khondakar who was arrested from the place of occurrence at the time of recovery of the alleged narcotics. The accused Bashu Mia is the son of accused Badsha Mia. P.Ws. 1, 2 and 3 are the Officers of the Narcotics Control Department and they have stated that the alleged alamats were recovered from the house of the accused persons. P.W.s 4, 5, 6 and 7 were tendered by the prosecution. P.W. 8 is the complainant and the Investigating Officer and P.W. 9 is the Chemical Examiner. P.Ws. 10 and 11 are the witnesses of the seizure list and they were declared hostile by the prosecution.

P.W. 10 stated that the alleged alamats were recovered on 20.04.1991 from the house of Tota Mia but during cross-examination, he stated that he was called to go to the house of Tota Mia, Badsha Mia and Bashu Mia. During cross-examination by the prosecution he denied the suggestion that the alamats were recovered from the house of Badsha Mia and Bashu Mia. P.W. 10 also stated that the alamats were recovered from the house of Tota Mia and he was not present at the time of recovery of the alamats and after recovery of the alamats, he was taken to the house of Badsha Mia and Bashu Mia and he signed the typed seizure list. P.Ws. 2 and 3 stated that P.W. 1 prepared the seizure list. P.W. 1 stated that Abdul Hai prepared the seizure list and the prosecution did not examine the said

Abdul Hai. P.W. 1 admitted that Abdul Majid did not sign the seizure list. P.Ws. 4, 5, 6 and 7 were tendered by the prosecution and P.Ws. 10 and 11 were declared hostile.

The trial Court found that nothing was mentioned in the seizure list that the alleged alamats were recovered from the house of accused Badsha Mia and Bashu Mia although in the seizure list, it has been mentioned that the items Nos. 6, 7 and 8 mentioned in the seizure list were recovered from the room of accused Badsha Mia and Bashu Mia kept under the cot. Therefore, the findings of the trial Court that nothing was mentioned in the seizure list that the alleged alamats were recovered from the house of the accused Badsha Mia and Bashu Mia is not a correct finding of fact.

It is an admitted fact that the accused Badsha Mia and Bashu Mia were not present at the time of recovery of alamats. P.W. 10 and 11 who are the witnesses of the seizure list also stated that the alamats were recovered from the house of accused Tota Mia and nothing was recovered from the house of accused Bashu Mia and Badsha Mia in their presence. Furthermore, P.Ws. 4 to 7 were tendered. Abdul Majid who prepared the seizure list was not examined by the prosecution. The defence was seriously prejudiced for non-examination of the Abdul Majid who prepared the seizure list. In the above backdrop of the evidence, I am of the view that the prosecution failed to prove the charge against the accused Badsha Mia Khondakar and Bashu Mia Khondakar beyond all reasonable doubt.

It is found that accused Md. Tota Mia Khondakar died during the pendency of the appeal before 12/15 years ago. Therefore, in view of the provision made in Section 431 of the Code of Criminal Procedure, 1898 the appeal filed by the accused Md. Tota Mia Khondakar so far relates to sentence of imprisonment is abated. The trial Court also awarded a sentence of fine amounting to Tk. 5,000 against accused Md. Tota Mia Khondakar. If the sentence of fine is recovered, the state machineries are required to be involved and the costs of recovery of the fine will be more than the sentence of fine imposed against accused Md. Tota Mia

Khondakar. Therefore, the sentence of fine of Tk. 5,000 awarded against accused Md. Tota Mia Khondakar is remitted.

In the result, the appeal so far Badsha Mia Khondakar and Bashu Mia Khondakar is allowed.

The appeal filed by the accused Md. Tota Mia Khondakar is abated and the fine awarded against him is hereby remitted.

The impugned judgment and order passed by the trial Court against accused Badsha Mia Khondakar and accused Bashu Mia Khondakar are hereby set aside.

Send down the lower Court's records.